

Republic Of the Philippines
CITY OF CAGAYAN DE ORO
OFFICE OF THE CITY COUNCIL
Cagayan de Oro City
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City of Cagayan de Oro

RECEIVED

Date: **AUG 17 2026**
Time: **4:39**
By: **JUSTIN KYLE P. ASNE**
Local Legislative Staff Officer I

CELSO TABASAN PABUALAN,
Complainant,

-versus-

HON. LOLITA L. WAHING,
Barangay Captain, Barangay Puerto,
Cagayan de Oro City,

Respondent.

BR Case No. 2026-06

For: **Abuse of Authority, Grave
Misconduct and Conduct of
Unbecoming of a Public Official
Violation of IPRA RA 8371 an RA
3609**

X-----X

**RESPONDENT'S REJOINDER/COMMENT
TO COMPLAINANT'S REPLY TO COUNTER-AFFIDAVIT**

RESPONDENT HON. LOLITA L. WAHING, through counsel, respectfully states

I. PRELIMINARY STATEMENT

1. Respondent received Complainant's **Reply to Counter-Affidavit dated 31 July 2026** and respectfully submits this **Rejoinder/Comment** to address the material factual and legal matters raised therein.
2. Respondent received a copy of the Reply to Counter-Affidavit on **03 August 2026 at approximately 1:35 p.m.** During the hearing, the Committee granted Respondent **fifteen (15) days from receipt** within which to file this Rejoinder/Comment.
3. Pursuant to **Section 1, Rule 22 of the Rules of Court**, the **day of receipt is excluded**, and the **last day of the period is included**. Accordingly, **04 August 2026 is Day 1** and **18 August 2026 is Day 15**. Hence, this **Rejoinder/Comment is timely filed**.
4. The **fifteen (15)-day period** stated above is based on the **specific directive of the Committee** granting Respondent fifteen (15) days from receipt of the Reply within which to file this Rejoinder/Comment. It is **distinct from the period for filing a verified answer to an administrative complaint under Section 62(a) of Republic Act No. 7160**, otherwise known as the **Local Government Code of 1991**.